

Under the Sanitary and Phytosanitary Measures (SPS) Agreement, World Trade Organization (WTO) members are entitled to maintain a level of protection they consider appropriate to protect life or health within their territory.

We refer to this as the Appropriate Level of Protection (ALOP).

We apply Australia's ALOP in the import risk analyses we conduct.

Australia's Appropriate Level of Protection

Australia defines its ALOP in qualitative terms. It is defined as 'providing a high level of sanitary and phytosanitary protection aimed at reducing risk to a very low level, but not to zero.' Sanitary protection refers to the protection of animal and human health, and phytosanitary protection refers to the protection of plant health.

Australia's ALOP definition was agreed to by the Australian Government and all state and territory governments. It is prescribed in the Biosecurity Act 2015.

We conduct import risk analyses to assess the biosecurity risk of an imported animal, plant or animal/plant product. We also use the analysis to identify if risk management measures are needed for the imported good.

Risk management measures are used to reduce the risk of an imported good, so that it achieves our ALOP. It is important to distinguish between ALOP and risk management measures. ALOP is the broad goal, and we may use risk management measures to meet that goal.

The SPS Agreement sets out rules and requirements for WTO members. For example, it outlines that WTO members:

- have the right to determine their own ALOP
- should minimise negative trade effects when determining their ALOP
- must adopt the least trade-restrictive risk management measures possible to achieve ALOP. This rule is subject to technical and economic feasibility constraints.
- must apply ALOP consistently.

These rules mean that Australia cannot choose to be:

- less trade-restrictive for imported goods we want, and/or
- more trade-restrictive than necessary for imported good that may compete with Australian products.

ALOP and import risk analyses

If the biosecurity risk of an import does not achieve Australia's ALOP, we will aim to identify risk management measures to reduce that risk. In such cases, we will only allow imports if there are risk management measures that can reduce the risk to achieve ALOP.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/risk-analysis/conducting-import-risk-analysis/appropriate-level-of-protection>